

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,	)	
AMERICAN TRUCKING ASSOCIATIONS, INC.	)	
	)	
Complainant,	)	
	)	
v.	)	
	)	FMC Docket No. 20-14
OCEAN CARRIER EQUIPMENT MANAGEMENT	)	
ASSOCIATION, INC.; CONSOLIDATED CHASSIS	)	
MANAGEMENT, LLC; CMA CGM S.A.; COSCO	)	
SHIPPING LINES CO. LTD.; EVERGREEN LINE	)	
JOINT SERVICE AGREEMENT, FMC NO. 011982;	)	
HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK	)	
A/S; MSC MEDITERRANEAN SHIPPING	)	
COMPANY S.A.; OCEAN NETWORK EXPRESS	)	
PTE. LTD.; WAN HAI LINES LTD.; YANG MING	)	
MARINE TRANSPORT CORP.; AND	)	
ZIM INTEGRATED SHIPPING SERVICES,	)	
	)	
Respondents.	)	
	)	

MOTION FOR CONFIDENTIAL TREATMENT
OF CERTAIN MATERIALS ON CONSENT

Pursuant to 46 C.F.R. §§502.69, 502.141(j)(1) and 502.5(b), Ocean Carrier Equipment Management Association, Inc., Consolidated Chassis Management, LLC, CMA CGM S.A., COSCO Shipping Lines Co. Ltd., Evergreen Line Joint Service Agreement, FMC No. 011982 (“Evergreen”), Hapag-Lloyd AG, HMM Co. Ltd., Maersk A/S, MSC Mediterranean Shipping Company S.A., Ocean Network Express Pte. Ltd., Wan Hai Lines Ltd., Yang Ming Marine Transport Corp., and ZIM Integrated Shipping Services, (collectively, “Respondents”), hereby move for confidential treatment of certain materials (“Motion for Confidential Treatment”) included with or referred to in the Memorandum of Law, Statement of Material Facts and Appendix submitted in support of Respondents’ Motion for Summary Judgment and Evergreen’s Supplemental Motion for Summary Judgment (“MSJ”).

Counsel for Respondents have conferred with counsel for the Complainant regarding Respondents' Motion for Confidential Treatment and counsel for Complainant consents to the relief sought herein.

On June 9, 2021, the presiding officer issued an Order Entering Stipulation and Second Amended Order of Confidentiality ("Confidentiality Order"), providing for the confidential treatment of certain materials produced in discovery in this proceeding ("Confidential Information"). The Protective Order as issued contemplates the use of confidential material in connection with briefing on the merits and requires that Confidential Information disclosed to the Commission and the Administrative Law Judge in papers, including exhibits, shall be labeled in accordance with 46 CFR §502.5 and that "(t)he ALJ shall order an appropriate procedure for the use of the Confidential Information at or during the course of the Proceeding pursuant to 46 CFR §502.141(j)(1)."

Pursuant to the foregoing, the Respondents move for the continued confidential treatment of the categories of evidence set forth below, for the reasons indicated.

1. Fourteen witnesses were produced by the Respondents who testified regarding confidential contracts between intermodal equipment providers ("IEPs") and ocean carriers, requests for proposals and negotiations relating to same and numerous communications, documents and presentations relating to non-public financial, marketing and business activities of the Respondents. All of this testimony and the documents adduced during this testimony were designated "Confidential - Outside Counsel Eyes Only" ("OCEO") pursuant to the Confidentiality Order;
2. Declarations were provided by three IEPs, DirectChassis Link, Inc., Interpool, Inc. d/b/a TRAC Intermodal and Flexi-Van Leasing, LLC which contain proprietary and

commercially sensitive information regarding their respective operational and business activities;

3. Documents were produced, and deposition testimony was given, by subpoenaed motor carriers which are members of the IMCC, by the North American Chassis Pool Cooperative (“NACPC”) and by ChassisLeaseCo LLC (“CLC”), an entity whose primary corporate purpose is to obtain and lease chassis to NACPC. The evidence adduced from these entities involve financial information and operational activities which are commercially sensitive, and which were designated by IMCC’s counsel as OCEO;
4. The Declaration of Douglass Coates, the Respondents’ industry expert who submitted a Declaration in support of the MSJ, contains citations to and evaluation of documents and testimony that were designated OCEO.

Pursuant to Rule 502.5 (b), Respondents have filed with this motion a Confidential-Restricted version which designates the confidential material and a Public Version in which the confidential material has been redacted. As indicated above, counsel for Complainant has consented to this Motion for Confidential Treatment, and Counsel for Respondents has consented to Complainant’s motion for similar treatment of the materials it has designated as confidential.

For the foregoing reasons, the Respondents request that the material so designated in the Memorandum of Law, Statement of Material Facts and Appendix submitted in support of the MSJ be kept confidential and not disclosed to the public.

Respectfully submitted,

COZEN O'CONNOR

HOLLAND & KNIGHT

By:___/s/ Christopher Raleigh

By:___/s/ Gerald Morrissey_

Counsel for Respondents¹
Wayne R. Rohde
Christopher Raleigh
Mark A. Rabinowitz
Kathryn Sobotta
1200 19th Street N.W., Suite #300
Washington, D.C. 20036
(202) 463-2507

Counsel for Respondent Hapag-Lloyd AG
Gerald Morrissey
Christopher Nolan
800 17th Street N.W., Suite 1100
Washington, D.C. 20006
(202) 469-5497

MANELLI SELTER PLLC

By: /s/ Deana Rose_____

Counsel for Respondent Yang Ming
Marine Transport Corporation
Deana E. Rose
1725 I Street NW.
Washington, D.C. 20006
(202) 261-1016

May 4, 2022

¹ Other than Hapag-Lloyd AG and Yang Ming Marine Transport Corporation.